

Priyanka Yadav vs Satpal Singh on 17 December, 2021

Author: Sudesh Bansal

Bench: Sudesh Bansal

HIGH COURT OF JUDICATURE FOR RAJASTHAN
JODHPUR

S.B. Civil Misc. Appeal No. 1174/2021

Priyanka Yadav

----Appellant

Versus

Satpal Singh

----Respondent

For Appellant(s) : Mr. Hemant Dutt
For Respondent(s) : -

HON'BLE MR. JUSTICE SUDESH BANSAL

Order 17/12/2021 This appeal is filed by the appellant-wife, assailing the judgment and decree of divorce dated 01.10.2021 passed by the court of learned Addl. District Judge No. 2, Rajgarh, Churu.

The apprehension of the appellant is that the respondent may enter into re-marriage, after dissolution of their marriage.

As per Section 15 of Hindu Marriage Act, once the appellant- wife has filed an appeal and assailed the decree of divorce within period of limitation, on such an apprehension of appellant, the legal fiction comes in play in respect of creating a bar on the respondent to enter into re-marriage.

Thus, in view of the specific provision of Section 15 of HM Act, the rights of the appellant are duly protected.

However, on the issue as to whether the appeal should be heard by the Division Bench or by the Single Bench in relation to (2 of 2) [CMA-1174/2021] impugned decree for divorce, the appellant seeks time to make her submissions.

Put up on 13.01.2022.

(SUDESH BANSAL),J ns. 145-1/-

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